

Sonelal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 December 2019 · WRIT - C No. - 38607 of 2019 · **Writ disposed; Executive Engineer to pass speaking final order after hearing; Section 127 left open.**

HEADNOTE

A consumer sought certiorari against an undated demand of Rs. 2,07,847 plus recovery charges, alleging coercive action without hearing and without following the U.P. Electricity Supply Code, 2005. The Court did not quash the demand. It directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for seven weeks or until disposal of the objection, ordered service of the provisional assessment order and checking report, and left any further challenge to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Sonelal Singh challenged a demand notice of Rs. 2,07,847 plus recovery charges issued by the Executive Engineer of Purvanchal Vidyut Vitran Nigam Limited, Fatehpur, which bore no date. He alleged that the respondents were taking coercive recovery action without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. After two adjournments for the licensee's instructions and an interim restraint on coercive action, the High Court heard the writ on 19 December 2019.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order then section 127 appeal

HOLDING

Where a writ sought quashing of an undated demand and recovery on the ground of no hearing and non-compliance with the Supply Code, 2005, and a provisional assessment was on the record, the Court did not quash the demand. It directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for seven weeks or until disposal of the objection (whichever earlier), ordered service of the provisional assessment order and checking report, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance or default in filing the objection would revive the recovery citation and vacate the stay. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal A consumer sought certiorari against an undated demand of Rs. 2,07,847 plus recovery charges, alleging coercive action without hearing and without following the U.P. Electricity Supply Code, 2005. The Court did not quash the demand.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RS. 2,07,847 DEMAND AND ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Writ disposed without examining the demand on merits; the Executive Engineer was left to pass a speaking final order.

¶ 1

